

At Individual Assignment Part 55
of the Supreme Court of the State of
New York, held in and for the County
of New York, City and State of New
York, at the courthouse located at 71
Thomas Street, New York, New
York, on the 29th day of

HON. JAMES E. d'AUGUSTE January, 2025.

PRESENT: HON. JUSTICE _____

-----X
THE CITY OF NEW YORK,

Plaintiff,

ORDER TO SHOW CAUSE

Index No.: 450551/2025

-against-

MS# 1 Injunction

THE LAND AND BUILDING KNOWN AS 512
WEST 42nd STREET, also known as 510 WEST 42nd
STREET, TAX BLOCK #1070, TAX LOT #20,
COUNTY OF NEW YORK, CITY and STATE of
NEW YORK; WEST 42nd STREET DEVELOPERS,
LLC; BABY'S WEST 42 LLC; "JOHN DOE" and
"JANE DOE," fictitiously named parties, true names
unknown, the intended being the owners, lessees,
operators or occupants of the commercial premises
operating within the basement, ground floor and
second floor of the building at 512 West 42nd Street,
New York, New York; and any person claiming any
right, title or interest in the real property which is the
subject of this action,

Defendants.

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Upon reading and filing the annexed affirmation of Evan Gluck, Esq., dated
January 28, 2024; the affirmation of Sergeant Jason Castillo, dated December 20, 2024;
the affirmation of Lieutenant John Corde, dated December 19, 2024; together with the exhibits;
and the Summons and Verified Complaint, verified by Marquis R. Bradshaw, Esq. on
 , 2025,

LET defendants or their attorneys Show Cause before this Court located at 71 Thomas Street, County of New York, City and State of New York, to appear in person on the 5th day of February 2025, at 10:00 ^{am} o'clock in the forenoon of that day or as soon thereafter as counsel can be heard,

Why an order should not be made pursuant to Sections 7-707 and 7-710 of the New York City Administrative Code and Sections 6301 and 6311 of the Civil Practice Law and Rules enjoining defendants, their agents, employees and/or representatives, and all persons acting individually or in concert with them, during the pendency of this action:

- A. From the use and/or occupancy of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York, (hereinafter "the subject premises") for any purpose whatsoever and directing that said premises shall be closed; and
- B. From conducting, maintaining, operating or permitting the subject premises to be used or occupied for the unlicensed sale and on-premises consumption of alcoholic beverages, or for any other unlawful activity described in Section 123 of the New York State Alcoholic Beverage Control Law; and
- C. From removing or in any other manner interfering with the furniture, fixtures and movable property used in conducting, maintaining or permitting the nuisance complained of herein; and
- D. From conducting, maintaining, operating or permitting the subject premises to be used, occupied or operated for a business, activity or enterprise which is not licensed as required by law; and
- E. From conducting or maintaining a criminal nuisance within the subject premises by

allowing the unlicensed sale and on-premises consumption of alcoholic beverages which creates a criminal nuisance pursuant to Section 240.45(2) of the New York Penal Law.

And, in the event this motion for a preliminary injunction is adjourned on the return date set forth above, why an order should not be issued on that date pursuant to Section 7-707(a) of the New York City Administrative Code temporarily closing the subject premises and temporarily restraining defendants as set forth in subparagraphs "B" through "E" until such time that the Court conducts a hearing on the request for a preliminary injunction.



NOW IT IS HEREBY ORDERED THAT, pending the hearing of this motion, that defendants, their agents, employees and/or representatives, and any and all persons acting individually or in concert with them are enjoined, pursuant to Section 7-710 of the New York City Administrative Code and Section 6313 of the Civil Practice Law and Rules:



1. From conducting, maintaining, operating or permitting the subject premises to be used or occupied for the unlicensed sale and on-premises consumption of alcoholic beverages or other unlawful activity described in Section 123 of the New York State Alcoholic Beverage Control Law, and



2. From removing or in any manner interfering with the furniture, fixtures and movable property used in conducting, maintaining or permitting the nuisances complained of herein.



IT IS FURTHER ORDERED that service of a copy of this Order to Show Cause, together with the papers upon which it is based and the Summons and Verified Complaint, be made upon defendants personally pursuant to CPLR § 308(1); or by leaving a copy thereof with a person of suitable age and discretion at the subject premises pursuant to CPLR § 308(2) on or before the

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___ day of 1/31, 2025; and that this be deemed good and sufficient service on defendants, provided however, that if service cannot made personally or to a person of suitable age and discretion, a copy of the papers will be posted at the subject premises and subsequently mailed to each defendant at his or her last known address by the overnight mail on or before the 3rd day of February, 2025.

Oral Argument
Directed

JSC

ENTER:

JSC

HON. JAMES E. d'AUGUSTE

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